

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jayvee Rhoda	Team: Squad #08	CCRB Case #: 201408590	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 08/20/2014 4:45 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/20/2016	Precinct: 49
Date/Time CV Reported Wed, 08/20/2014 4:51 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/20/2014 4:51 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Greaney	20646	947762	WARRSEC
2. DT3 Sean Wolfenhaut	7789	947612	WARRSEC
3. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Greaney	Abuse: PO Michael Greaney entered the boiler room of § 87(2)(b), in the Bronx.	A . Exonerated
B . DT3 Sean Wolfenhaut	Abuse: Det. Sean Wolfenhaut entered the boiler room of § 87(2)(b), in the Bronx.	B . Exonerated
C . An officer	Force: An officer used physical force against an individual.	C . Officer(s) Unidentified

Case Summary

On August 20, 2014, at approximately 4:45 p.m., § 87(2)(b) her daughter § 87(2)(b) her husband § 87(2)(b) and § 87(2)(b) s four children were inside § 87(2)(b) s basement apartment located at § 87(2)(b) in the Bronx. PO Michael Greaney and Det. Sean Wolfenhaut from the Bronx Warrant Section knocked on the door of the apartment and § 87(2)(b) opened the door and let the officers inside. The officers were looking for § 87(2)(b) s son, § 87(2)(b) who was suspected of burglary and had an open I-card. Upon entering the apartment, the officers first went to the kitchen. The officers sensed movement coming from a boiler room in the basement that was not connected to § 87(2)(b) s apartment. PO Greaney and Det. Wolfenhaut asked § 87(2)(b) and § 87(2)(b) the superintendent of the building, for the keys to the boiler room. § 87(2)(b) and § 87(2)(b) stated that they did not have the keys to the boiler room, upon which PO Greaney and Det. Wolfenhaut allegedly broke in the door and entered the boiler room (**Allegations A and B**). During the course of the incident, one of the officers allegedly grabbed § 87(2)(b) s § 87(2)(b)-old son by his shoulders and pushed him to the floor (**Allegation C**). The officers eventually left the apartment without speaking to § 87(2)(b) and no arrests were made.

Mediation, Civil, and Criminal Histories

This case was not eligible for mediation since property damage was alleged. On May 22, 2015, the New York City Comptroller's Office confirmed that § 87(2)(b) did not file a Notice of Claim (See Board Review 1). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer Histories

- This is § 87(2)(b) s and § 87(2)(b) s first CCRB complaint (See Board Review 4).
- PO Michael Greaney has been a member of the service for six years and there are three substantiated CCRB allegations against him. In case number 201017328, the Board recommended charges for frisk and search of person allegations. The NYPD issued instructions for the frisk allegation but took no disciplinary action for the search allegation. In case number 201207978, the Board recommended charges for a physical force allegation and the case is currently assigned to the APU (See Board Review 4).
- Det. Wolfenhaut has been a member of the service for six years and there are no substantiated CCRB allegations against him (See Board Review 4).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) stated that there were four subject officers involved with this incident. However, when her daughter, § 87(2)(b) called the Intake Unit to file this complaint, she stated that there were only two subject officers that visited the apartment. Furthermore, PO Greaney and Det. Wolfenhaut, who both acknowledged visiting the apartment and interacting with § 87(2)(b) § 87(2)(b) stated that they were the only two officers present during the incident and no other

officers arrived at the location. § 87(2)(g)

§ 87(2)(b) alleged that one of the officers pushed her § 87(2)(b) -old non-verbal autistic grandson. § 87(2)(b) and § 87(2)(b) both provided similar physical descriptions for PO Greaney and Det. Wolfenhaut and neither officer could be distinguished based on the descriptions provided. PO Greaney recalled seeing § 87(2)(b)'s children present in the apartment, but Det. Wolfenhaut did not. Both PO Greaney and Det. Wolfenhaut denied pushing § 87(2)(b)'s grandson. § 87(2)(g)

Recommendations

Allegation A—Abuse of Authority: PO Michael Greaney entered the boiler room of § 87(2)(b), in the Bronx.

Allegation B—Abuse of Authority: Det. Sean Wolfenhaut entered the boiler room of § 87(2)(b), in the Bronx.

Allegation C—Force: An officer used physical force against an individual.

§ 87(2)(b) who initially filed this complaint, called the Intake Unit while the incident was still in progress on August 20, 2014. During this call, § 87(2)(b) stated that PO Greaney and Det. Wolfenhaut knocked on the door of the apartment and § 87(2)(b) let the officers come inside the apartment. The officers were looking for § 87(2)(b)'s brother, § 87(2)(b) who had an open I-card and was wanted by the police for burglary. PO Greaney and Det. Wolfenhaut asked for the keys to a boiler room that was in the basement and § 87(2)(b) replied that no one in the apartment had the keys. § 87(2)(b) stated that PO Greaney and Det. Wolfenhaut subsequently broke down the door to the boiler room. § 87(2)(b) stated that one of the officers threw her § 87(2)(b) -old son to the floor (See 245).

In a subsequent phone statement that she provided to the CCRB on September 19, 2014, § 87(2)(b) stated that the officers threatened to break down the door to the boiler room and that one of the officers pushed her § 87(2)(b) -old son to the floor while running through the apartment (See Board Review 7). § 87(2)(b) was ultimately uncooperative with the investigation (See Board Review 13).

On October 23, 2014, § 87(2)(b) provided a phone statement to the CCRB. She stated that PO Greaney and Det. Wolfenhaut knocked on the door of her apartment. § 87(2)(b) stated that her husband, § 87(2)(b) opened the door, upon which the officers forced their way inside the apartment. The officers tried to break down the door to the boiler room and § 87(2)(b) informed them that no one had the keys to the room. § 87(2)(b) stated that one of the officers pushed her grandson during the incident. She also stated that her son, § 87(2)(b) was not present during this incident (See Board Review 5).

On November 7, 2014, § 87(2)(b) appeared at the CCRB and provided a verified statement. § 87(2)(b) stated that only she, § 87(2)(b) and § 87(2)(b)'s four children were at home. Contrary to her earlier phone statement, § 87(2)(b) stated that § 87(2)(b) had left the apartment prior to this incident and he was not present. § 87(2)(b) stated that officers pushed open the door to her apartment and entered without knocking or announcing themselves. She stated that the officers broke into the boiler room and entered it. § 87(2)(b) stated that an officer grabbed her grandson by his shoulders and pushed him to

the floor of the apartment. § 87(2)(b)'s grandson did not sustain any injuries. The officers eventually left the apartment without saying anything to § 87(2)(b) (See Board Review 6).

§ 87(2)(b) refused to provide a statement to the CCRB (See Board Review 8). PO Greaney stated that he and Det. Wolfenhaut knocked on the door of the apartment and § 87(2)(b) opened the door. PO Greaney explained to § 87(2)(b) that they were looking for his son, § 87(2)(b). § 87(2)(b) said "Come check" to the officers and gave them consent to search the apartment. PO Greaney stated that neither he nor Det. Wolfenhaut broke any locks in the apartment. After the officers entered, PO Greaney stated that he observed § 87(2)(b) and § 87(2)(b) exit the apartment to go outside. PO Greaney followed them and saw them looking inside the window of a boiler room that was not connected to the apartment. PO Greaney saw § 87(2)(b) climbing out of the window attempting to flee the location. § 87(2)(b) climbed back inside and ran out of the room through the door. PO Greaney stated that he entered the boiler room through the window and he and Det. Wolfenhaut chased after § 87(2)(b) who ran out of the apartment to the street and was able to evade capture. PO Greaney denied pushing § 87(2)(b)'s grandson and he did not see Det. Wolfenhaut do so (See Board Review 9).

Det. Wolfenhaut stated that when he and PO Greaney arrived at the location, PO Greaney asked him to wait beside the back door of the apartment, which was located inside the building. PO Greaney went to the front door of the apartment, which was on street level. Det. Wolfenhaut did not see how PO Greaney gained entry to the apartment through the front. Det. Wolfenhaut stated that he saw § 87(2)(b) run out of the apartment through the rear door and hide in an adjacent boiler room. Det. Wolfenhaut stated that he waited beside the boiler room and spoke to § 87(2)(b) through the door. Det. Wolfenhaut denied breaking in the door of the boiler room or seeing PO Greaney do so. Det. Wolfenhaut stated that § 87(2)(b) eventually exited the boiler room and ran past Det. Wolfenhaut into his apartment and out into the street. § 87(2)(b) was able to evade capture. Det. Wolfenhaut stated that he did not recall seeing any children inside the apartment and he denied pushing any children or seeing PO Greaney push any children (See Board Review 10).

When § 87(2)(b) filed this complaint, while it was still taking place, she said that she let the officers enter the apartment. § 87(2)(g)

§ 87(2)(b)

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§ 87(2)(b)

PO Greaney testified that he observed § 87(2)(b) escape from a window in the boiler room, and when § 87(2)(b) saw PO Greaney he retreated into the boiler room, and PO Greaney followed him through the window.

The police may enter a dwelling to make a warrantless arrest inside a person's home if exigent circumstances exist. The following six factors are considered when determining whether exigent circumstances exist: "(1) the gravity or violent nature of the offense with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of

probable cause . . . to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry.” People v. McBride, 14 N.Y.3d 440, 446 (2010) (See Board Review 15).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A** and **B** be closed as **Exonerated**. § 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **Officer Unidentified**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date